

The Co-Operative Banks (Nomination) Rules, 1985

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Union of India - Act

The Co-Operative Banks (Nomination) Rules, 1985

UNION OF INDIA

India

The Co-Operative Banks (Nomination) Rules, 1985

Rule THE-CO-OPERATIVE-BANKS-NOMINATION-RULES-1985 of 1985

Published on 29 March 1985

Commenced on 29 March 1985

[This is the version of this document from 29 March 1985.]

[Note: The original publication document is not available and this content could not be verified.]

The Co-Operative Banks (Nomination) Rules, 1985

Published Vide S.O. 266(E), Dated 29.3.1985, Published In The Gazette Of India, Ext., Pt. II, Section 3(II).
296.

In exercise of the powers conferred by section 52 read with sections 45-ZA, 45-ZC, 45-ZE and 56 of the Banking Regulation Act, 1949 (10 of 1949), and after consultation with the Reserve Bank of India, the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Co-operative Banks (Nomination) Rules, 1985.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Nomination in respect of deposits .-(1) The nomination to be made by the depositor or, as the case may be, all the depositors together in respect of a deposit held by a co-operative bank to the credit of one or more individuals shall be in Form DA-1.

(2)

The said nomination may be made only in respect of a deposit which is held in the individual capacity of the depositor and not in any representative capacity as the holder of an office or otherwise.

(3)

Where the nominee is a minor, the depositor or, as the case may be, all the depositors together, may, while making the nomination, appoint another individual not being a minor, to receive the amount of the deposit on behalf of the nominee in the event of the death of the depositor or, as the case may be, all the depositors during the minority of the nominee.

(4)

In the case of a deposit made in the name of a minor, the nomination shall be made by a person lawfully entitled to act on behalf of the minor.

(5)

The cancellation of the said nomination to be made by the depositor or, as the case may be, all the depositors together, shall be in Form DA-2.

(6)

A variation of the said nomination to be made by the depositor or, as the case may be, all the depositors together, shall be in Form DA-3.

(7)

The said nomination shall be made in favour of only one individual.

(8)

(a)

A nomination, cancellation of nomination or variation of nomination may be made as aforesaid at any time during which the deposit is held by a co-operative bank to the credit of the depositor or depositors, as the case may be.

(b)

In the case of a deposit held to the credit of more than one depositor, the cancellation or variation of a nomination shall not be valid unless it is made by all the depositors surviving at the time of the cancellation or variation of the nomination.

(9)

The co-operative bank shall acknowledge in writing, to the concerned depositor or depositors, the filing of the relevant duly completed Form of nomination or cancellation of nomination or variation of nomination, as the case may be, in respect of a deposit.

(10)

The relevant duly completed Form of nomination or cancellation of nomination or variation of nomination filed with the co-operative bank shall be registered in the books of the co-operative bank.

(11)

A nomination or cancellation of nomination or variation of nomination shall not cease to be in force merely by reason of the renewal of the deposit.

3.

Nomination in respect of articles in safe custody .-(1) The nomination to be made by an individual (hereinafter referred to as "the depositor") in respect of articles left in safe custody with a co-operative bank shall be in Form SC 1.

(2)

Where the nominee is a minor, the depositor may, while making the nomination, appoint another individual not being a minor, to receive the said articles on behalf of the nominee in the event of the death of the depositor during the minority of the nominee.

(3)

Where the articles are left in safe custody with a co-operative bank in the name of a minor, the nomination shall be made by a person lawfully entitled to act on behalf of the minor.

(4)

The cancellation of the said nomination to be made by the depositor shall be in Form SC 2.

(5)

The variation of the said nomination to be made by the depositor shall be in Form SC 3.

(6)

The said nomination shall be made in favour of only one individual.

(7)

The nomination, cancellation of nomination or variation of nomination may be made by the depositor at any time during which the articles so deposited are held in safe custody by the co-operative bank.

(8)

The co-operative bank shall acknowledge in writing, to the depositor, the filing of the relevant duly completed Form of nomination or cancellation of nomination or variation of nomination, as the case may be, in respect of the articles so deposited.

(9)

The relevant duly completed form of nomination or cancellation of nomination or variation of nomination filed with the co-operative bank shall be registered in the books of the co-operative bank.

4.

Nomination in respect of safety locker .-(1) The nomination to be made by an individual who is a sole hirer of a locker from a co-operative bank shall be in Form SL 1.

(2)

Where the locker is hired from a co-operative bank by two or more individuals jointly, the nomination to be made by such hirers shall be in the Form SL 1-A.

(3)

In the case of a sole hirer of a locker, nomination shall be made in favour of only one individual.

(4)

Where the locker is hired in the name of a minor, the nomination shall be made by a person lawfully entitled to act on behalf of the minor.

(5)

The cancellation of the said nomination to be made by the sole hirer or, as the case may be, joint hirers of a locker, shall be in Form SL 2.

(6)

A variation of the said nomination to be made by the sole hirer of a locker shall be in Form SL 3.

(7)

A variation of the said nomination to be made by the joint hirers of a locker shall be in Form SL 3-A.

(8)

A nomination, cancellation of nomination or variation of nomination may be made as aforesaid at any time during which the locker is under hire.

(9)

A co-operative bank shall acknowledge in writing to the sole hirer or joint hirers, the filing of the relevant duly completed Form of nomination or cancellation of nomination or variation of nomination, as the case may be, in respect of the locker so hired.

(10)

The relevant duly completed Form of nomination or cancellation of nomination or variation of nomination filed with the co-operative bank shall be registered in the books of the co-operative bank.

FORM DA 1

Nomination Under Section 45-Za Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 2(1) Of The Co-Operative Banks (Nomination) Rules, 1985 In Respect Of The Bank Deposits

I/Wenominate the following person(s) to whom in [name(s) and address(es)] the event of my/our/minor's death, the amount of the deposit, particulars whereof are given below, may be returned by

.....

(name and address of branch/office in which deposit is held)

DEPOSIT

NOMINEE

Nature of

Distinguishing No.

Additional details, if any

Name

Address

Relationship with depositor, if any

Age

If nominee is a minor, his date of birth

*2. As the nominee is a minor on this date, I/We appoint Shri/Smt./Kum(name, address and age) to receive the amount of the deposit on behalf of the nominee in the event of my/our/minor's death during the minority of the nominee.

Place:

Date:

.....
**Signature(s)/Thumb-impression (s) of depositor(s)

Name(s) and signature(s) and address(es) of witness(es)***

*Strike out if nominee is not a minor.

**Where deposit is made in the name of a minor, the nomination should be signed by a person lawfully entitled to act on behalf of the minor.

***Thumb-impression(s) shall be attested by two witnesses.

FORM DA 2

Cancellation Of Nomination Under Section 45-Za Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 2(5) Of The Co-Operative Banks (Nomination) Rules, 1985 In Respect Of Bank Deposits

I/We hereby cancel the nomination made by me/us [name(s) and address(es)] in favour ofin respect of.....

(name and address) (give details of deposits)

Place:

Date:

.....
*Signature(s)/Thumb-impression(s) of depositor(s)

Name(s), signature(s) and address(es) of witness(es)**

*Where deposit is made in the name of minor, the cancellation of nomination should be signed by a person lawfully entitled to act on behalf of the minor.

**Thumb-impression(s) shall be attested by two witnesses.

FORM DA 3

Variation Of Nomination Under Section 45-Za Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 2(6) Of The Co-Operative Banks (Nomination) Rules, 1985 In Respect Of Bank Deposits

I/We hereby cancel the nomination made by me/us in [name(s) and address(es)] favour ofand hereby nominate the following person to (name and address) whom in the event of my/our/minor's death, the amount of the deposit, particulars whereof are given below, may be returned by

(name and address of branch/office in which deposit is held)

DEPOSIT

NOMINEE

Nature of

Distinguishing No.

Additional details, if any

Name

Address

Relationship with depositor, if any

Age

If nominee is a minor, his date of birth

The Co-Operative Banks (Nomination) Rules, 1985

*2. As the nominee is a minor on this date, I/We appoint Shri/Smt./Kum
.....to receive the amount of the deposit on behalf (name, address and age) of the nominee, in the event of my/ our/minor's death during the minority of the nominee.

Place:

Date:

.....

**Signature(s)/Thumb-impression(s) of depositor(s).

Name(s), Signature(s) and address(es) of witness(es)***

*Strike out if nominee is not a minor.

**Where deposit is made in the name of a minor, the cancellation of nomination should be signed by a person lawfully entitled to act on behalf of the minor.

***Thumb-impression(s) shall be attested by two witnesses.

FORM SC 1

Nomination Under Section 45-Zc Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 3(1) Of The Co-Operative Banks (Nomination) Rules, 1985 In Respect Of Articles Left In Safe Custody With Co-Operative Bank
I, nominate the following person to whom, in (name and address) the event of my/minor's death, the articles left in safe custody, particulars whereof are given below, may be returned by(name and address of branch/office in which the articles are left in safe custody)

ARTICLES

NOMINEE

Nature of

Distinguishing Mark or No.

Additional details, if any

Name

Address

Relationship with depositor, if any

Age

If nominee is a minor, his date of birth

*2. As the nominee is a minor on this date, I/We appoint Shri/Smt./Kum
.....to receive the said articles on behalf of the (name, address and age) nominee in the event of my/minor's death during the minority of the nominee.

Place:

Date:

.....

**Signature(s)/Thumb-impression(s) of depositor

Name(s), signature(s) and address(es) of witness(es)***

*Strike out if nominee is not a minor.

**Where articles are left in safe custody in the name of a minor, the nomination should be signed by a person lawfully entitled to act on behalf of the minor.

***Thumb-impression(s) shall be attested by two witnesses.

FORM SC 2

Cancellation Of Nomination Under Section 45-Zc Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 3(4) Of The Co-Operative Banks (Nomination) Rules, 1985 In Respect Of Articles Left In Safe Custody With Co-Operative Bank

I hereby cancel the nomination made by me in (name and address) favour ofin respect of the articles left by me in safe custody (name and address) with (name and address of branch/office in which the articles are left in safe custody) particulars whereof are given below :

PARTICULARS OF ARTICLES

Nature of articles

Distinguishing Mark or No.

Additional detail, if any

.....

*Signature(s)/Thumb-impression(s) of depositor

Place:

Date:

Name(s), signature(s) and address(es) of witness(es)**

*Where articles are left in safe custody in the name of a minor, the cancellation of nomination should be signed by a person lawfully entitled to act on behalf of the minor.

**Thumb-impression(s) shall be attested by two witnesses.

FORM SC 3

Variation Of Nomination Under Section 45-Zc Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 3(5) Of The Co-Operative Banks (Nomination) Rules, 1985 In Respect Of Articles Left In The Safe Custody With Co-Operative Bank

I cancel the nomination made by me in favour (name and address) ofand hereby nominate the following persons to whom (name and address) in the event of my/minor's death, the articles left in safe custody, particulars whereof are given below, may be returned by(name and address of branch/office in which articles are left in safe custody)

ARTICLES

NOMINEE

Nature of

Distinguishing Mark or No.

Additional details, if any

Name

Address

Relationship with depositor, if any

Age

If nominee is a minor, his date of birth

*2. As the nominee is a minor on this date, I appoint Shri/Smt./Kumto receive the said articles on behalf of the (name, address and age) nominee, in the event of my/minor's death during the minority of the nominee.

Place:

Date:

.....

**Signature(s)/Thumb-impression(s) of depositor

Name(s), signature(s) and address(es) of witness(es) ***

*Strike out if nominee is not a minor.

**Where articles are left in safe custody in the name of a minor, the variation of nomination should be signed by a person lawfully entitled to act on behalf of the minor.

***Thumb-impression(s) shall be attested by two witnesses.

FORM SL 1

Nomination Under Section 45-Ze Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 4(1) Of The Co-Operative Banks (Nomination) Rules, 1985 By Sole Hirer In Respect Of Safety Locker

Inominate the following person to whom in the event (name and address) of my/minors, death(name and address of branch/office in which the locker is situated) may give access to the locker and liberty to remove the contents of the locker, particulars whereof are given below :

LOCKER

NOMINEE

Nature of

Distinguishing Mark or No.

Additional details, if any

Name

Address

Relationship with hirer, if any

Age

.....

*Signature(s)/Thumb-impression(s) of hirer

Place:

Date:

Name(s), signature(s) and address(es) of witness(es) @**

*Where the locker is hired solely in the name of a minor, the nomination should be signed by a person lawfully entitled to act on behalf of the minor.

**Thumb-impression shall be attested by two witnesses.

FORM SL 1-A

Nomination Under Section 45-Ze Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 4(2) Of The Co-Operative Banks (Nomination) Rules, 1985, By Joint Hirer In Respect Of Safety Locker

I/We nominate the following person(s) to whom [(name(s) and address (es))] in the event of the death of one or more of us (name and address of branch/office in whichmay access to the locker and liberty to remove the contents of the locker, the locker is situated) particulars whereof are given below, jointly with the survivor or survivors of us.

LOCKER

NOMINEE (S)

Nature of

Distinguishing Mark or No.

Additional details, if any

Name

Address

Relationship with hirer, if any

Age

.....

Signature(s)/Thumb-impression(s) of hirer(s)

Place:

Date:

Name(s), signature(s) and address(es) of witness(es)*

*Thumb-impression(s) shall be attested by two witnesses.

FORM SL 2

Cancellation Of Nomination Under Sections 45-Ze And 52 Read With Section 56 Of The Banking Regulation Act, 1949, And Rule 4(5) Of The Co-Operative Banks (Nomination) Rules, 1985 In Respect Of Safety Locker

I/We, hereby cancel the nomination(s) made by [name(s) and address(es)] me/us in favour ofin respect of the safety locker, the [name(s) and address(es)] particulars whereof are given below :

LOCKER

NOMINEE (S)

Nature of

Distinguishing Mark or No.

Additional details, if any

Name

Address

Relationship with hirer, if any

Age

.....
*Signature(s)/Thumb-impression(s) of hirer(s)
Place:

Date:
Name(s), signature(s) and address(es) of witness(es)**

*Where the locker is hired solely in the name of a minor, the cancellation of nomination should be signed by a person lawfully entitled to act on behalf of the minor.

**Thumb-impression(s) shall be attested by two witnesses.

FORM SL 3

Variation Of Nomination Under Sections 45-Ze And 52 Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 4(6) Of The Co-Operative Banks (Nomination) Rules, 1985, By Sole Hirer In Respect Of Safety Locker

I cancel the nomination made by me in favour (Name and address) ofand hereby nominate the following person to whom (Name and address) in the event of my/minor's death (Name and address of branch/office in which themay give access to the locker and liberty to remove the contents of the locker is situated) locker, particulars whereof are given below :

LOCKER

NOMINEE

Nature of

Distinguishing Mark or No.

Additional details, if any

Name

Address

Relationship with hirer, if any

Age

.....
*Signature(s)/Thumb-impression(s) of hirer(s)
Place:

Date:
Name(s), signature(s) and address(es) of witness(es)**

*Where the locker is hired solely in the name of a minor, the variation of nomination should be signed by a person lawfully entitled to act on behalf of the minor.

**Thumb-impression(s) shall be attested by two witnesses.

FORM SL 3-A

Variation Of Nomination Under Sections 45-Ze And 52 Read With Section 56 Of The Banking Regulation Act, 1949 And Rule 4(7) Of The Co-Operative Banks (Nomination) Rules, 1985, By Joint Hirers In Respect Of Safety Locker

We cancel the nomination(s) made by us in [name(s) and address(es)] favour ofand hereby nominate the following person(s) to [(name(s) and address(es)] whom in the event of the death of one or more of us (name and address of branch/office in which the locker is situated).....may give access to the locker and liberty to remove the contents of the locker, particulars whereof are given below, jointly with the survivor or survivors of us.

LOCKER

NOMINEE (S)

Nature of

Distinguishing Mark or No.

Additional details, if any

Name

Address

Relationship with hirer, if any

Age

.....

Signature(s)/Thumb-impression(s) of hirer

Place:

Date:

Name(s), signature(s) and address(es) of witness(es)[*]

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